

		nonresident defendant was allowed a change of venue under Clause Two in a condemnation action brought by Riverside County Flood Control and Water Conservation District in Riverside County, because "... it is still possible that a Riverside County juror will also be a District taxpayer with an interest in keeping the condemnation award unreasonably low. This situation would be precisely one which the Legislature must have intended to avoid by enacting section 394." (Id., at p. 248.) And as the court pointed out in City of Alameda, supra, there is no need for a party to demonstrate an actual danger of prejudice; the statute "is designed to obviate the appearance of prejudice as well as actual prejudice or bias." (42 Cal.App.3d at p. 317.)" (<i>Ibid.</i>) This a case brought by a plaintiff local agency against a defendant county and is currently being tried in the county in which both the plaintiff and defendant are situated. Based on the authority above, the motion is GRANTED. The Court ORDERS the case TRANSFERRED to San Diego County. The Case Management Conference is vacated. <i>Plaintiff to give notice.</i>
112	Mao vs. Mao, 25-01458525	The unopposed motion of attorney Jewels J. Jin of Jin Legal APLC to be relieved as counsel for Defendant Jamie Mao is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. At the hearing, the parties shall be prepared to discuss whether the Court Trial scheduled for 10/08/2026 should be briefly continued or if the parties are prepared to proceed as scheduled. <i>Moving attorney to give notice.</i>

113	Lancab, Inc. vs. Fuller, 25-01481178	Plaintiff, Lancab, Inc. ("Plaintiff"), moves for an order striking the memorandum of costs in its entirety. Plaintiff contends that Memorandum of Costs filed by Defendants, Keven Fuller and Defendant TechPro Services US (collectively, "Defendants") should be stricken as they were not served within the mandatory time limits of California Rules of Court, rule 3.1700(a)(1). No opposition has been filed. <i>Timeliness of Motion to Strike</i> Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum, and is extended as provided in Code of Civil Procedure section 1013 (five days for mail), and in Code of Civil Procedure section 1010.6(a)(3) (two court days for electronic service). (California Rules of Court, Rule 3.1700(b)(1).) Here, Defendants served their respective Memorandum of Costs on Plaintiff on February 19, 2026, by email. (Declaration of Travis F. Chance, ¶ 9, Ex. 2.) The deadline to file the instant motion to strike was therefore March 10, 2026 (15 days + 2 court days). As this instant motion was filed and served on March 9, 2026, it was timely served and filed. <i>Timeliness of Memorandum of Costs</i> "A party's right to recover costs is governed entirely by statute. [Citation.]" (<i>Boonyarit v. Payless Shoesource, Inc.</i> (2006) 145 Cal.App.4th 1188, 1192.) "To obtain costs, a party must comply with the applicable rules of court. [Citation.]" (<i>Ibid.</i>) "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc. § 1032(b).) Prejudgment costs must be claimed and contested in accordance with the rules adopted by the Judicial Council. (Code Civ. Proc., § 1034(a); see also CJER, Cal. Judges Benchbook Civ. Proc. Trial § 16.11.) "A party that requests dismissal of an action must serve on all parties and file notice of entry of the dismissal." (California Rules of Court, rule 3.1390.)
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